IN THE BUSINESS AND PROPERTY COURTS IN BIRMINGHAM
CIRCUIT COMMERCIAL COURT (KBD)

Claim No. CC-2025-BHM-000142

Before HHJ Marriott KC sitting as a Judge of the Circuit Commercial Court

B E T W E E N :

PENNINGTON INDUSTRIES LIMITED

Claimant

- and -

CROSSFIELD ENGINEERING LIMITED

Defendant

ORDER (CASE MANAGEMENT CONFERENCE)

UPON the Case Management Conference held on 9 May 2025

AND UPON hearing leading counsel for the Claimant and counsel for the Defendant

AND UPON the Court having considered the parties' Directions Questionnaires, draft directions and costs budgets

IT IS ORDERED THAT:

Allocation and costs management

1. The claim is allocated to the multi-track and retained in the Circuit Commercial Court at Birmingham.

2. The parties' costs budgets are recorded in the Costs Management Order annexed hereto; the budgeted costs are approved in the figures there set out and the parties shall revise their budgets if any significant development warrants.

Disclosure

3. Extended Disclosure under Model D (search-based disclosure with narrative documents) shall be given in respect of the agreed List of Issues for Disclosure. Each party shall serve its Disclosure Certificate and Extended Disclosure by 4.00 pm on 11 July 2025.

4. Any application in respect of the adequacy of disclosure shall be made by 4.00 pm on 1 August 2025.

Witness evidence

5. Each party shall serve on the other the signed statements of its witnesses of fact, compliant with Practice Direction 57AC, by 4.00 pm on 12 September 2025.

6. Witness statements are to stand as the evidence in chief of the makers. There shall be no supplementary witness statements without permission.

Expert evidence

7. Each party has permission to rely on the written evidence of one expert in metallurgy and materials engineering, directed to the questions of (i) the grade and conformity of the housings supplied and (ii) the cause of the failures in service.

8. Experts' reports shall be exchanged by 4.00 pm on 31 October 2025. The experts shall hold a without-prejudice discussion and prepare a joint statement under CPR 35.12 by 4.00 pm on 28 November 2025.

ADR and listing

9. By 4.00 pm on 30 September 2025 the parties shall consider settlement, including by mediation; if any party considers ADR inappropriate it shall file a witness statement explaining why, such statement not to be opened to the trial judge.

10. The trial shall be listed for 5 days in a window commencing 9 February 2026, before a Judge of the Circuit Commercial Court, with a pre-trial review to be fixed not less than four weeks before trial.

11. Costs of and occasioned by the Case Management Conference shall be costs in the case.

12. The parties have permission to apply.

Dated: 9 May 2025

By the Court

[SEALED — Business and Property Courts in Birmingham]